

Synopsis

In course of investigation, the owner of the seized vehicle bearing Reg. No. WB-19F-7544 namely Md Mosin Hussain (58) S/O - Late Md Ali Hussain of 34, Harin Bari Lane, PS - Bowbazar, Kol - 73 &2, Nabab Badruddin Street, Chittaranjan Ave, Kolkata - 73 prayed before the Ld. Court for the release of his vehicle.

During investigation, served notice u/s 94 BNSS to the owner of the said vehicle to produce relevant documents and he complied but failed to produce any valid Driving Licence in the name of the driver namely Md. Wasim, thereby violating the provisions of Section 3 of the MV Act. The seized vehicle was handed over to the petitioner/owner after executing indemnity bond under the order of Ld. Court of A.C.J.M, Sealdah, South 24 pgs.

The prima facie case has been well established U/S 281/125(a) BNS r/w Section 3 MV Act against the accused person namely Md. Wasim (40 Yrs.) S/O Late Md. Mustafa of 9, Kalachand Dutta Street, P.S- Jorasanko, Kol-73& 13, Umedpur, Bhagwatpur, Samastipur, Bihar, PIN - 848127 and he may go up for trial for judicial findings under order of superior.

Hence, if approved, the undersigned may kindly be allowed to submit Charge Sheet U/S 281/125(a) BNS r/w Section 3 MV Act against the accused person.

Submitted,

(M. Ali)
P/SI of Entally PS

Ref: Entally PS Case No. 277 dt. 27.10.2025 U/S 281/125(a) BNS.

Complainant: Durgesh Gupta (30 Yrs.) S/O Toofani Gupta of 23/4, R.N.C. Road, P.S- Entally, Kol-15.

Accused person: Md. Wasim (40 Yrs.) S/O Late Md. Mustafa of 9, Kalachand Dutta Street, P.S- Jorasanko, Kol-73& 13, Umedpur, Bhagwatpur, Samastipur, Bihar, PIN – 848127.

(The accused person was arrested on 28.10.2025 and on C.B till 20.05.2026)

Brief fact:

This case was recorded on the basis of complaint submitted by Durgesh Gupta (30 Yrs.) S/O Toofani Gupta of 23/4, R.N.C. Road, P.S- Entally, Kol-15, wherein he alleged that on 27.10.2025 at about 16.15 hrs, the accused person being the driver of the offending vehicle bearing Reg. No. WB-19F-7544, drove the same along Dr. Lal Mohan Bhattacharjee Road from East to West direction in rash and negligent manner endangering human life and safety to others and hit a vehicle from behind at the crossing of Ramlila Maidan, P.S- Entally, Kol-14. As a result, the complainant and his relative Ranglal Gupta sustained injuries on their legs. Subsequently, they were treated and discharged from NRSMC & Hospital.

During investigation, visited the PO, examined the local witnesses and recorded their statements u/s 180 B.N.S.S and it could be learnt that the driver namely Md. Wasim (40 years), S/O Late Md. Mustafa of 9, Kalachand Dutta Street, P.S. Jorasanko, Kolkata-73 and also of 13, Umedpur, Bhagwatpur, Samastipur, Bihar, PIN-848127, was driving the offending vehicle bearing Registration No. WB-19F-7544 in a rash and negligent manner and hit the vehicle bearing Registration No. WB-19Q-7245 from behind, thereby causing injuries to the complainant and his relative. The injury report of the complainant and his relative has been collected. Accordingly, the offending vehicle (White Colour LGV-407, Made of TATA Motor) bearing Reg. No. WB-19F-7544 along with the accused driver namely Md Wasim brought to the PS for further examination.

During investigation, served notice u/s 35(3) BNSS to the accused person being the driver of the offending vehicle namely Md. Wasim (40 Yrs.) S/O Late Md. Mustafa of 9, Kalachand Dutta Street, P.S- Jorasanko, Kol-73 & 13, Umedpur, Bhagwatpur, Samastipur, Bihar, PIN - 848127. He was examined in the light of instant case. During examination the accused person didn't co-operate with the investigation. Subsequently, he was arrested on 28.10.2025 and the offending vehicle (Reg. No. WB-19F-7544) was seized under proper seizure list dated 28.10.2025 maintaining all necessary formalities. At present the accused person is on C.B till 20.05.2026.